



United States
Attorney's Office
Northern District of Florida



Army Veteran Sentenced to Federal Prison For Over Three-Quarter Million Dollar Benefit Fraud

Monday, January 13, 2025

For Immediate Release

U.S. Attorney's Office, Northern District of Florida

PENSACOLA, FLORIDA – Kevin Paul McMains, 44, of Milton, Florida, has been sentenced to 33 months in federal prison after previously pleading guilty to one count of theft of government money and two counts of making false statements to a federal agency. The sentence was announced today by Jason R. Coody, United States Attorney for the Northern District of Florida.

"Our service members, and their families, make incredible sacrifices to defend our country and are deserving of our deepest respect and the disability benefits intended for our injured patriots," said U.S. Attorney Coody. "Consequently, the defendant's fabrication of documents and false claims of service-connected injuries, to include his assertion he was awarded a Purple Heart, is not only criminal, but repugnant. We remain committed to vigorously investigate and prosecute those who defraud government disability programs, stealing benefits earned by our veterans."

Court documents reflect that for nearly 14 years, McMains received over \$779,000 in government disability benefits by providing false information to the Department of Veterans Affairs (VA). McMains submitted fraudulent documentation and made false statements to medical professionals and in his applications claiming that post-traumatic stress was affecting his life to the extent he was unable to work, do normal daily activities, or care for himself, knowing that was not true. In addition, he also falsely claimed he was awarded a Purple Heart as proof of his service-connected injuries. As a result of his fraud, McMains also qualified for and received Social Security disability benefits and Medicare coverage to which he would not have otherwise been entitled.

"This sentence sends a clear message that veterans who defraud VA by exaggerating their disabilities will be held accountable," said Special Agent in Charge Dimitriana Nikolov of the VA Office of Inspector General's Northwest Field Office. "VA's programs and services are established to justly compensate

deserving veterans and the VA OIG is committed to investigating those who would exploit these programs."

"Mr. McMains defrauded the Social Security Administration (SSA) of \$357,847 with fabricated documents that falsely reported his medical condition. His malicious acts are inexcusable, and this 33-month prison sentence holds him accountable for his crimes," said Jermaine Jack, Acting Special Agent in Charge, SSA Office of the Inspector General, Atlanta Field Division. "I commend the Department of Veterans Affairs Office of the Inspector General and Health and Human Services Office of the Inspector General for their invaluable work in this investigation. Further, I commend the U.S. Attorney's Office for their work in prosecuting this case."

"Individuals who fraudulently obtain Medicare benefits that they are not entitled to divert taxpayer funds meant to pay for essential health services for legitimate enrollees, including the elderly and disabled," said Special Agent in Charge Steven J. Ryan at the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "Working closely with our law enforcement partners, HHS-OIG remains committed to thoroughly investigating health care fraudsters to hold them accountable for their actions and to send a warning to those considering such fraudulent schemes."

In addition to a 33-month prison sentence, McMains was ordered to pay restitution of \$378,380.82 to the VA, \$357,847.80 to the SSA, and \$43,451.56 to the Centers for Medicare and Medicaid Services. McMains' prison sentence will be followed by two years of supervised release.

This case resulted from a joint investigation by the Department of Veterans Affairs Office of the Inspector General, Social Security Administration Office of the Inspector General, and the Department of Health and Human Services Office of the Inspector General. Former Assistant United States Attorney J. Ryan Love and Assistant United States Attorney Alicia Forbes prosecuted this case.

The United States Attorney's Office for the Northern District of Florida is one of 94 offices that serve as the nation's principal litigators under the direction of the Attorney General. To access public court documents online, please visit the [U.S. District Court for the Northern District of Florida](https://www.uscourts.gov/court-locations/northern-district-of-florida) website. For more information about the United States Attorney's Office, Northern District of Florida, visit <http://www.justice.gov/usao/fln/index.html>.

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